

		23. Delete paragraph 1. 24. The operative settlement and notice (including any translations) should be identified and attached as exhibits. 25. Delete paragraph 10. 26. Add a paragraph providing: “This order shall constitute a judgment for purposes of California Rules of Court, Rule 3.769(h).” 27. Propose a date for a final accounting hearing. The court conducts final accounting hearings on Mondays at 1:30 p.m. The proposed order and judgment shall state that counsel shall submit a final administrator’s report at least 16 days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
8	30-2023-01333990 Diaz vs. Silverado Senior Living Management, Inc.	The tentative ruling is to continue Plaintiff Marlene Del Carmen Leonor Diaz’s (“Plaintiff”) Motion for Preliminary Approval of Class Action and PAGA Settlement to November 9, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys’ fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of

		this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff must provide documentation and support for any request higher than this percentage at the final approval stage. The parties have not provided the court with any declaration from Defendant's counsel as to any potential conflict of interest as to the proposed cy pres recipient, as required by CCP §382.4. The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. The Request for Exclusion form should be referenced in the appropriate sections of the class notice so that class members are informed that they may use the form to request exclusion from the class settlement. The class release in the Definitions section, Paragraph 31, must be amended to remove the phrase: "This release shall apply to any and all claims arising at any point during the Class Period." The release may only include claims actually made in the complaints in this action, or that arise from the facts alleged in this action during the Class Period. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
10	30-2025-01487413 Alvarez vs. ASAS Group, Inc.	The tentative ruling is to continue Plaintiff Miguel A. Huerta Alvarez's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 16, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and